



EMPLOYMENT TRIBUNALS

Claimant: Mrs J Peters

Respondent: Barchester Healthcare Ltd

Heard at: Leeds by CVP

On: 2 October 2025

Before: Employment Judge Maidment

Representation

Claimant: Mr S Jackson, Solicitor

Respondent: Mr C Glyn, KC

JUDGMENT

1. The claimant's complaint of indirect sex discrimination is dismissed upon her withdrawal of it.
2. The claimant's complaints of direct discrimination because of belief at allegations (paragraphs) 25, 26, 28, 29, 31, 33 and 34 of her particulars of claim are dismissed upon her withdrawal of them.
3. The claimant's complaint of direct discrimination because of belief and harassment related to belief at allegation 45 of her particulars of claim are struck out as having no reasonable prospects of success.
4. The claimant's claim of unfair dismissal is struck out (in part) as having no reasonable prospect of success save insofar as she maintains that the decision to dismiss was unreasonable on the following grounds:
 - that as a senior employee and member of the senior management team, she was not covered by the respondent's policy or ought reasonably not to have been,
 - she worked in a position where contact with care home residents was never required (she says that she was not a risk to residents)
 - she worked remotely from care homes

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- any meeting involving a care home which she might have had to undertake could have been conducted remotely
- there had been no evaluation of the effect of non-frontline care workers not being vaccinated
- procedural unfairness in the process of investigation, dismissal and her appeal, including in respect of her dismissal having been announced before the determination of her appeal
- her dismissal being tainted by any acts found to have been direct discrimination because of belief or harassment related to belief

For the avoidance of doubt the claim of unfair dismissal is struck out (in part) so as to preclude any argument by the claimant that the respondent's vaccine policy involved any interference with her human rights in terms of security of the person or her pleaded protected belief.

Employment Judge Maidment

Date 31 October 2025